

26STCV08435 26STCV08435

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-25

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Case Number: 26STCV08435 Hearing Date: June 25, 2026 Dept: 512

HEARING DATE: Thurs.,

June 25, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Rand,

et al. v. Langer COMP.

FILED: 03-16-26

CASE

NUMBER: 26STCV08435 PET. FILED: 05-13-26

NOTICE: OK

PROCEEDINGS: PETITION

FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF

JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Avrohom Rand on behalf of minor Plaintiff Tzvi Rand

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The Petition

for Approval of Compromise of Claim or Action or Disposition of Proceeds of

Judgment for Minor is GRANTED.

The

following persons must attend the hearing on the compromise of the claim:

1. Person compromising the claim on behalf

of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

The Court

schedules an Order to Show Cause Re: Proof of the Purchase of Annuity and Order

to Show Cause Re: Dismissal of the Action for July 28, 2026 at 8:30 a.m.

Moving party

is ordered to give notice.

SERVICE:

[X] Proof of Service Timely

Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§

1013, 1013a) OK

[X] 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of June 23,

2026 []

Late [X] None

REPLY: None filed as

of June 23, 2026 [] Late [X]

None

ANALYSIS:

I.

Background

On

March 16, 2026, minor Plaintiff Tzvi Rand ("minor Plaintiff"), by and through Avrohom

Rand ("Plaintiff"), brought the instant action against Defendant Nechamia

Langer ("Defendant") and Does 1-100, alleging Motor Vehicle and General

Negligence causes of action. The underlying action involves a collision between

minor Plaintiff on a non-electric scooter and Defendant in a vehicle.

On

March 17, 2026, the Court appointed Plaintiff as minor Plaintiff's Guardian Ad

Litem. (3/17/26 Order.)

On

May 11, 2026, Plaintiff and minor Plaintiff filed Notice of Settlement of

Entire Case.

On

May 13, 2026, minor Plaintiff by and through Plaintiff ("Petitioner") brought

the instant Petition for Approval of Compromise of Claim or Action or

Disposition of Proceeds of Judgment for Minor (the "Petition").

To

date, no opposition or response to the Petition has been filed.

II.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's

claim. (Prob. Code §§ 3500, 3600, et seq.;

Code of Civ. Proc., § 372.) " [W]ithout trial court approval of the proposed

compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding

[on the minor] until it is endorsed by the trial court.' " (Pearson v. Superior Court (2012) 202

Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a

guardian or conservator of the estate or by a guardian ad litem appointed by

the court in which the action or proceeding is pending, or by a judge thereof,

in each case.” (Code Civ. Proc., § 372, subd. (a)(1).)

Regarding the substance of the

Petition, to obtain court approval of the settlement of a minor’s claims, the

petitioner must file a complete and

“verified petition for approval of the settlement and must disclose ‘all

information that has any bearing upon the reasonableness of the compromise.’ ”

(Barnes v. Western Heritage Ins. Co. (2013)

217 Cal.App.4th 249, 256, italics added; Cal. Rules of Court, rule 7.950.)

The Court finds the Petition and Proposed Order are substantially

complete. The Court also finds that Petitioner provided timely and proper proof

of service of the Petition and Proposed Order on Defendant. Finally, the Court

finds the proposed settlement to be fair and reasonable in light of minor

Plaintiff’s damages.

Thus, the Petition is GRANTED.

III.

Conclusion

& Order

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for Approval of Compromise of Claim or Action or Disposition of Proceeds of

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attend the hearing on the compromise of the claim:

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of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

The Court schedules an Order to

Show Cause Re: Proof of the Purchase of Annuity and Order to Show Cause Re:

Dismissal of the Action for July 28, 2026 at 8:30 a.m.

Moving party is ordered to give

notice.